

Mark,

My reading of the 45 page settlement agreement, says that ENA agrees ... to release to Birchill "on a permanent basis on or before October 31, 2002". This wording gives us more flexibility than just saying the Birchill transaction is not going to become effective until November 1, 2002. It also matches up with Enron Canada's Birchill settlement which is how I discussed the issue with Eva.

I did a quick read of NBPL's Motion. Although, there was not a Schedule A in the Motion, it looks like the base contract for ENA's Tenaska temporary capacity release will be included in NBPL's Schedule A. Your comment to Len Parkins on the revision is on point.

Ruth

-----Original Message-----

From: Mark Ellenberg [mailto:Mark.Ellenberg@cwt.com]

Sent: Monday, May 13, 2002 4:18 PM

To: Lenard M. Parkins

Cc: Concannon, Ruth

Subject: Re: Fwd: Stipulation and Order - Clean and Redlined

Thanks for the revisions. We need the following additional changes:

We need to see schedule A.

One contract has been released to Tenaska until October 31, 2002. That contract should not be rejected until after that date.

The Burchill transaction is not going to become effective until November 1, 2002. We suggest that NB do temporary releases between now and then. Mitigation referred to in paragraphs 2 and 4 should include either payments actually received or the highest bid rejected in the event NB imposes a minimum bid that is not hit.

I understand that Ruth Concannon has discussed these issues with Eva.

Also, I have not yet heard from Brian Rosen.

Thanks.

Mark C. Ellenberg
Cadwalader, Wickersham & Taft
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Washington, DC 20004
202.862.2234

"Lenard M. Parkins"

<Lenard.Parkins@haynes To: Mark.Ellenberg@cwt.com,
boone.com> Eva.Neufeld@NBOrder.com

cc:

Office: Subject: Fwd: Stipulation and Order - Clean
and Redlined

05/13/02 12:51 PM

Here is the revised stipulation for Northern Border and ENA. There is a clean and a redlined draft for review.

Thanks

Len Parkins

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----- Message from "Mara Priestley" <Mara.Priestley@haynesboone.com> on

Mon, 13 May 2002 11:49:15 -0500 -----

To: "Lenard M. Parkins"

<Lenard.Parkins@haynesboone.com>

Subject: Stipulation and Order - Clean and
Redlined

(See attached file: 337888_2.DOC)(See attached file: Redlined Stip and
Order.rtf)

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